

Raj Pati Devi Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 15 March 2024 · 2024:AHC-LKO:22980-DB · WRIT - C No. 2530 of 2024 · **Writ disposed; bill grievance to be decided under clause 6.5, coercive recovery stayed until then.**

HEADNOTE

A dispute in the nature of correction of an electricity bill is cognizable under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of by permitting the grievance to be presented before respondent no. 2 within two weeks, for a speaking and reasoned order preferably within two weeks, and by directing that coercive measures under the recovery certificate not be adopted until that decision.

FACTUAL SUMMARY

Raj Pati Devi Yadav petitioned the Lucknow Bench against the State of Uttar Pradesh, through the Energy Department Secretary, and others, over an electricity bill that had gone into recovery. The dispute was one of correction of the bill. Counsel for the petitioner said the grievance had already been placed before respondent no. 2 and sought a direction that it be considered and decided expeditiously. Notice was accepted for respondent nos. 2 and 3. The order does not record the amount, the connection, or the particular objection.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

bill-correction dispute; representation and stay of coercive recovery

HOLDING

Settlement of a dispute in the nature of correction of bills is provided under clause 6.5, and the dispute in the writ is cognizable under that clause. The bill grievance, if any, may be presented before respondent no. 2 within two weeks; if presented, it shall be considered and decided expeditiously, preferably within two weeks, by a speaking and reasoned order. Until that decision, coercive measures shall not be adopted in pursuance of the impugned recovery certificate. The writ petition is disposed of on those directions. ¶ 2-7

PRINCIPLE TAGS

bill-correction-clause-6.5 The Court treated the writ as a dispute in the nature of correction of electricity bills and held it cognizable under clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 2-3

6.5-representation-as-appropriate-remedy The writ was disposed of by permitting the petitioner to present the bill grievance before respondent no. 2 within two weeks, to be decided by a speaking and reasoned order preferably within two weeks. ¶ 4-5,7

para-6.5-objection-before-coercive-recovery Until respondent no. 2 decides the representation, coercive measures in pursuance of the impugned recovery certificate are not to be adopted. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND OF THE RECOVERY CERTIFICATE

Left to respondent no. 2, if a representation is presented within two weeks, to consider and decide by a speaking and reasoned order. ¶ 5-6

